

ChiroThinTracker SaaS Agreement

Software as a Service (SaaS) Agreement

This Brilliant Software Inc., SaaS Agreement (“Agreement”) is made and entered into by and between Brilliant Software Inc (“Brilliant”), dba ChiroThinTracker, a Florida corporation, with its office located at 117 Grand Myrtle Drive, Ponte Vedra, Florida 32081 and the subscribing party, a duly licensed Doctor of Chiropractic who owns or operates or oversees a licensed ChiroThin Weight Loss Facility or Facilities (“Subscriber”) who has accepted this agreement and whose signature appears at the bottom of this document.

WHEREAS, Brilliant is a subscription based digital health information management and tracking platform (“Platform”) operating as ChiroThinTracker.com; and

WHEREAS Subscriber, wishes to subscribe to the use of the Platform subject to the terms and conditions of this SaaS Agreement (“Agreement”);

NOW, THEREFORE, in consideration of the mutual covenants and obligations set forth herein, the Parties hereto, intending to be legally bound, agree as follows:

- 1. SaaS.** Brilliant will provide Software as a Service (SaaS) to a ChiroThin Licensee duly licensed by Chironutraceuticals (“Chironutraceuticals”) for the use of the Platform at prices set forth in this Agreement. The Platform will be branded in accordance with Subscriber’s subdomain as requested in the on-boarding documentation, or as closely as can be provided in the case of a subdomain name already being in use. The Subscriber may use the Platform to enroll patients into an account on the Platform to access and interact with enrolled patients’ ChiroThin Program content and tracking functions of the Platform (the “Licensed Material”).
- 2. Platform.** Brilliant and Subscriber will use commercially reasonable technological security infrastructure and procedures (including the use of encryption, firewalls, and any other commercially reasonable procedures and technology) for the purposes of protecting the integrity, confidentiality, or security of, an unauthorized interception, loss, alteration, corruption, use of, or access to, the data or information stored within the Platform.
- 3. Free Trial Period / Billing / Contract Period / Cancellation.** This Agreement is effective when digitally signed or accepted by Subscriber and Brilliant or its representatives (“Effective Date”). All agreements are month to month and there are no long-term contracts. This Agreement shall automatically renew for additional terms of one (1) month each unless Subscriber cancels prior to the automated renewal occurs. Subscribers whose account becomes delinquent, [expired card/non sufficient funds/ declined because card frozen for fraudulent reasons] the system should send an email notifying them of the decline, then automatically attempt to re-bill within 24 hours/ 48 hours. If still declined, system will send an email notifying them that if their account is not brought up to current balance within another 24 hours (total of 72 hours from initial decline) - then their account is considered delinquent and is pending cancellation due to non-payment after 72 hours. Also, there will be a \$49 re-activation applied with no exceptions.

- ii) all billing will occur on the same day of the month - 15th
- iii) there needs to be 30 day and 60 day free trial periods
- iv) when free trial ends, the system should bill a pro rated amount to cover the days between the trial ending and the next billing cycle (15th)
- v) when a subscription is canceled - the permissions change to read only
- vi) a subscriber can renew their subscription on their account with a valid credit card and the system will bill a prorated amount to cover the days between reactivation and the next billing cycle (15th)
- vii) when a subscriber re-activates their subscription, a \$49 re-activation charge will be applied/charged

- 4. On-boarding & Site Creation.** Brilliant will create a login and account for Subscriber on the Platform and provide reasonable customization of the clinic platform in accordance with the documents, information and images provided by Subscriber in the on-boarding process. On-boarding shall be completed by our technical support team within 72 hours of receiving all on-boarding requirements. Clinic Login credentials will be sent via email containing a link to set a password.
- 5. Customer Service, Support, Maintenance.** Brilliant will maintain the Platform, each Subscriber account, deliver plan content to their ChiroThin patients enrolled in the platform by Subscribers and, handle technical support and customer service for each Subscriber and each enrolled patient of Subscribers using the Platform.
- 6. First Response.** Upon notification of an Incident by a Client between 8:00 a.m. and 5:00 p.m. EST, excluding weekends and federal holidays, Provider shall provide a first response within eight (8) hours of such notification. For Incidents occurring outside such time, Provider shall provide a first response within twenty-four (24) hours. First response shall include, but not be limited to, notifying a Client that information regarding the Incident has been received from Client and clarifying any and all issues regarding the Incident or Client.
- 7. Functional Requirements.** Brilliant and Subscriber acknowledge and agree that the Platform will operate in accordance as follows: (1) Provider shall identify any and all issues specific to an Incident and provide notice to the corresponding Client within forty-eight (48) hours of first notification of the Incident. Such notice shall include identification of the issue, the time frame for the Provider to correct such issue, and any other relevant information a reasonable person within Provider's industry would provide. (2) Provider shall correct and fix Non-Critical Incidents within forty- eight (48) hours of first notification of the Incident. (3) Provider shall correct and fix Critical Incidents within twelve (12) hours of notification of the Incident and provide first response immediately upon receiving notice of such Critical Incident. Brilliant will use commercially reasonable efforts to ensure upgrades or modifications do not reduce the functionality of the Platform during the Agreement's term or subsequent renewal. Notwithstanding the above listed timeframes, any commercial reasonable efforts used to cure any critical or non-critical incidents outside of these timelines will not be considered a material breach of this Agreement.
- 8. Account Structure.** All accounts will have a cloud based and mobile patient portal for individual patient information logging, training, HIPAA Compliant messaging with Subscriber and shopping of Chironutraceuticals products on a secure online store for each Subscriber clinic. The patient portal will be fully integrated into the Subscriber's Master Management and Tracking Account and provides a dashboard that displays all the enrolled patients daily ChiroThin Program submitted data.

Pricing Structure. Brilliant and Chironutraceuticals have agreed to the following subscription pricing structure: The Newbie Platform subscription fee: \$99/month that limits the subscriber to 4 enrolled patients and one credentialed user. Additional users are \$10/month. The Rookie Platform subscription fee: \$199/month that limits the subscriber to 10 enrolled patients and one credentialed user. Additional users are \$10/month. The Veteran Platform subscription fee: \$289/month and allows for unlimited enrolled patients, two credentialed users and two clinic locations. Additional users are \$10/month and additional clinic locations are \$49/month per clinic location. All-Pro Platform level is everything in the Veteran plus the Laser Tracker Add-on feature and this is priced at \$338/month. Additional credentialed users are available for \$10/month and additional clinic locations are \$49/month. Coupons may be applied at the time of set up or afterward at Brilliant's discretion to adjust the stated fees.

9. **E-Store.** The Platform contains a fully stocked Chironutraceuticals eStore with standard 100% markup pricing. You will need an online merchant services provider to link the marketplace to your bank accounts. Further customization of the eStore regarding product pricing changes, adding and deleting products (store customization) will incur additional charges at \$125 per hour and will be charged to the credit card encrypted on file upon completion of the work.

At this time, you may not sell any CBD products on the ChiroThinTracker Marketplace. To do so is a breach of our terms of agreement and the store will be deleted unless brought into compliance within 24 hours.

10. **Billing and Paying Subscription Fees.** It is agreed that the collecting of all Platform Subscription Fees be handled by Brilliant using its secure online Merchant Service. The charge on the credit card will be ChiroThinTracker. Payments are paid in advance of the month in question. Upgrading subscription level will incur a pro-rated daily fee. Downgrading subscription mid-month will not incur any refund, but will take effect on the next billing period.
11. **Declined Payments.** Subscribers whose account becomes delinquent, [expired card/non sufficient funds/ declined because card frozen for fraudulent reasons] the system should send an email notifying them of the decline, then automatically attempt to re-bill within 24 hours/ 48 hours. If still declined, system will send an email notifying them that if their account is not brought up to current balance within another 24 hours (total of 72 hours from initial decline) - then their account is considered delinquent and is pending cancellation due to non-payment after 72 hours. Also, there will be a \$49 re-activation applied with no exceptions.

12. Representations and Warranties

- **General.** Each Party represents and warrants that it has the right and authority to enter into this Agreement, and that by entering into this Agreement, it will not violate, conflict with or cause a material default under any other contract, agreement, indenture, decree, judgment, undertaking, conveyance, lien or encumbrance to which it is a party or by which it or any of its property is or may become subject of a proceeding.
- **Severability.** If any clause, phrase, provision, or portion of this Agreement, or the application thereof to Brilliant or Subscriber or circumstance, is later found to be invalid or unenforceable under applicable law, such event shall not affect, impair or render invalid or unenforceable the remainder of this Agreement or any other clause, phrase, provision, or portion thereof.
- **Compliance** Each Party represents and warrants that no consent, approval or authorization of or designation, declaration or filing with any governmental authority is required in

connection with the valid execution, delivery, and performance of this Agreement. Each Party shall, at its own expense, comply with all laws, regulations and other legal requirements that apply to it and this Agreement, including copyright, privacy and communications decency laws.

- **Acceptable Use.** The subscriber is solely responsible for the content of any postings, data, or transmissions by Subscriber, or any other use of the Platform by Subscriber or by any person or entity Subscriber permits to access the Platform. Subscriber represents and warrants that it will: (a) not use the Services in a manner that: (i) is prohibited by any law or regulation, or to facilitate the violation of any law or regulation; or (ii) will disrupt a third parties' similar use or Licensed Materials; (b) not violate or tamper with the security of any Brilliant computer equipment or program;. If Brilliant Software Inc has reasonable grounds to believe that Subscriber is utilizing the Services for any such illegal or disruptive purpose Brilliant may in its sole discretion suspend the Services immediately with or without notice to Subscriber.
- **WARRANTY DISCLAIMER. EXCEPT FOR THE EXPRESS WARRANTIES SET FORTH ABOVE, NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED IN THIS AGREEMENT, BRILLIANT SOFTWARE INC. MAKES NO OTHER WARRANTIES REGARDING THIS AGREEMENT OR THE PRODUCT, EXPRESS OR IMPLIED, OR WHETHER ARISING BY OPERATION OF LAW, INCLUDING WITHOUT LIMITATION, IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. BRILLIANT SOFTWARE INC. DOES NOT WARRANT THAT THE USE OF OR ACCESS TO THE PRODUCT WILL BE UNINTERRUPTED OR ERROR FREE.**
- **Limitation of Liability.** Excluding the liability under the section entitled "NO INFRINGEMENT" below, UNDER NO CIRCUMSTANCES WILL BRILLIANT OR ANYONE ELSE INVOLVED IN ADMINISTERING, DISTRIBUTING OR PROVIDING THE SERVICES, BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES THAT RESULT FROM THE USE OF OR INABILITY TO USE THE SERVICES, INCLUDING BUT NOT LIMITED TO LOSS OF REVENUE OR LOST PROFITS, OR DAMAGES THAT RESULT FROM MISTAKES, OMISSIONS, INTERRUPTIONS, DELETION OF FILES OR EMAIL, ERRORS, DEFECTS, VIRUSES, DELAYS IN OPERATION OR TRANSMISSION, FAILURE OF PERFORMANCE, THEFT, DESTRUCTION OR UNAUTHORIZED ACCESS TO BRILLIANT SOFTWARE INC'S RECORDS, PROGRAMS OR SERVICES, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH IN THE EVENT OF ANY BREACH BY BRILLIANT SOFTWARE INC OF THIS AGREEMENT, BRILLIANT SOFTWARE INC'S LIABILITY TO SUBSCRIBER WILL NOT EXCEED THE AMOUNT PAID TO BRILLIANT SOFTWARE INC BY SUBSCRIBER DURING THE PREVIOUS THREE MONTHS.
- **No Infringement:** Brilliant warrants the Licensed Material will not infringe any patent, trademarks, copyright or any proprietary rights of a third party or constitute a misuse or misappropriation of a trade secret. Subscriber shall notify Brilliant promptly in writing of any known action brought against Subscriber based on an allegation that Subscriber's use of any materials infringes any patent, trademark, copyright, or infringes any right of a third party, or constitutes misuse or misappropriation of a trade secret ("Infringement").

13. Confidential Information. For purposes of this Agreement "Confidential Information" shall mean

information including, without limitation, all Subscriber data, computer programs, code, algorithms, names and expertise of employees and consultants, know-how, formulas, processes, ideas, inventions (whether patentable or not), schematics and other technical, business, financial and product development plans, forecasts, strategies and information marked "Confidential", or if disclosed verbally, is identified as confidential at the time of disclosure. In addition to the foregoing, Confidential Information shall include third party software, if any, that may be provided to Subscriber under this Agreement, including any related source or object codes, technical data, data output of such software, documentation, or correspondence owned by the applicable licensor. Confidential Information excludes information that: (i) was or becomes publicly known through no fault of the receiving Party; (ii) was rightfully known or becomes rightfully known to the receiving Party without confidential or proprietary restriction from a source other than the disclosing Party; (iii) is independently developed by the receiving Party without the participation of individuals who have had access to the Confidential Information; (iv) is approved by the disclosing Party for disclosure without restriction in a written document which is signed by a duly authorized officer of such disclosing Party; and (v) the receiving Party is legally compelled to disclose; provided, however, that prior to any such compelled disclosure, the receiving Party will (a) assert the privileged and confidential nature of the Confidential Information against the third party seeking disclosure and (b) cooperate fully with the disclosing Party in protecting against any such disclosure and/or obtaining a protective order narrowing the scope of such disclosure and/or use of the Confidential Information. If such protection against disclosure is not obtained, the receiving Party will be entitled to disclose the Confidential Information, but only as, and to the extent, necessary to legally comply with such compelled disclosure.

14. Limitations on Use of Confidential Information. The subscriber agrees to use Confidential Information only in connection with, and as directly needed for the matters associated with the Platform. The subscriber recognizes and acknowledges that disclosure or dissemination to any third party of any Confidential Information could result in substantial damages being incurred by Brilliant and its affiliates, principals, and employees. Subscriber hereby covenants and agrees that the Subscriber will not directly or indirectly, nor will the Subscriber permit any of its agents, representatives or affiliates (collectively, "Representatives"), to, directly or indirectly, disclose, disseminate, publish, or permit the disclosure, dissemination or publishing of any or all of the terms and conditions of any Confidential Information, to or for any other person, group, firm, corporation, association, or other entity for any purposes whatsoever, without the prior and written consent of Brilliant. Notwithstanding the foregoing, Subscriber shall not be liable to Brilliant for any dissemination of Confidential Information which (a) has come within the public domain by means other than an unauthorized disclosure by Subscriber or the Representatives in violation of the terms hereof; (b) the Restricted Party or Representatives may be legally required to disclose by deposition, interrogatory, request for documents, subpoena, or court order or pursuant to the rules and regulations of a governmental agency or body; or (c) Subscriber has disclosed to Brilliant's attorney for the purpose of receiving legal advice regarding Subscriber's rights or duties so long as the attorney abides by the terms of the Agreement.

15. Nondisclosure. During this the term of this Agreement and for a period of 2 years thereafter, each Party agrees to maintain all Confidential Information in confidence to the same extent that it protects its own similar Confidential Information, but in no event using less than commercial reasonable care, and to use such Confidential Information only as permitted under this Agreement; Brilliant and Subscriber shall take steps each determines appropriate to implement and enforce such non-disclosure/non-use

obligations.

- 16. Reasonableness of Covenants.** Subscriber agrees that restrictive covenants in this Agreement are reasonable, and the Subscriber acknowledges and confirms that engaging in the prohibited disclosure of Confidential Information, directly or indirectly would likely cause irreparable injury to the Brilliant and its subsidiaries, affiliates, successors, and assigns. If, however, it shall be determined at any time by any court of competent jurisdiction that any portion of the restrictive covenants, as written, are unenforceable because the restrictions set forth therein are unreasonable, the parties hereto agree that such portions as shall have been determined to be unreasonably restrictive shall thereupon be deemed so amended as to make sure restrictions reasonable in the determination of such court, and the restrictive covenants, as so amended, shall be enforceable between the parties to the same extent as if such amendment had been made prior to the date of any alleged breach of such covenant.
- 17. Terms of Agreement** Each of the Parties agrees not to disclose to any third party the terms of this Agreement, including pricing, without the prior written consent of the other Party hereto, except to advisers, investors and others on a need-to-know basis under circumstances that reasonably ensure the confidentiality thereof, or to the extent required by law.
- 18. Remedies.** Subscriber hereby agrees that in the event of a breach or threatened breach by the Subscriber of the restrictive covenants prohibiting disclosure of Confidential Information, Brilliant shall be irreparably harmed and shall be entitled to an injunction restraining Subscriber or Subscriber's representatives from using or improperly disclosing any of the Confidential Information. Nothing herein shall be construed as prohibiting the parties from pursuing any other remedies available to it for such breach of threatened breach, including the recovery of damages from Subscriber or any other person. The provisions of this paragraph shall survive the termination of this Agreement or the disassociation of the parties.
- 19. Indemnification.** Subscriber is solely responsible for the content of communications transmitted by Subscriber and its representatives using the Services, and shall defend, indemnify, and hold harmless Brilliant from and against all liabilities and costs (including reasonable attorneys' fees) arising from any and all third-party claims by any person based upon the content of any such communications.
- 20. Subscriber Data and HIPAA.** All enrolled patient data is owned by Subscriber and is to be strictly held as confidential on Brilliant's HIPAA compliant servers. Brilliant Software Inc retains the right to aggregate subscriber data for statistical and reporting purposes. Brilliant will delete and destroy all copies of data once the Agreement is terminated with or without default. Prior to data destruction, Subscriber will have 48 hours to use the option within the Platform to download and print all patient data or to receive an electronic transfer method of Brilliant's choice.
- 21. Intellectual Property and Trade Usage.** All right, title and interest in and to the Licensed Material, and all copyrights, patents, trademarks, service marks or other intellectual property or proprietary rights relating thereto, belong exclusively to Brilliant Any modification to the Platform performed by Subscriber directly or indirectly shall be the property of Brilliant and all copyrights and other rights associated therein shall be assigned to Brilliant. Nothing contained in this Agreement shall be construed as creating a joint venture, partnership, or employment relationship between the parties, nor shall either Party have the right, power, or authority to create any obligation or duty, express or

implied.

- 22. Failure to Perform.** If a Party fails to perform or observe any material term or condition of this Agreement and the failure continues un-remedied for thirty (30) days after receipt of written notice, the other Party may terminate this agreement; provided, however, that where the breach is the failure of payment by Subscriber of any charge when due, Brilliant Software Inc, may, at in its sole discretion, terminate or suspend Services if Subscriber does not cure said breach within seven (7) days following notice to Subscriber of the delinquency. This Agreement may be terminated immediately upon written notice by either Party if the other Party becomes insolvent or involved in a liquidation or termination of business, files a bankruptcy petition, has an involuntary bankruptcy petition filed against it (if not dismissed within thirty days of filing), becomes adjudicated bankrupt, or becomes involved in an assignment for the benefit of its creditors. Subscriber shall be responsible for payment of all charges under a terminated Agreement incurred as of the effective date of termination.
- 23. Binding Effect.** This Agreement and all of its terms, conditions, covenants, representations and warranties hereunder shall be binding and inure to the benefit of the parties, their heirs, personal representatives, successors and assigns. No modification, termination or waiver of any provision of this Agreement shall be binding upon a party unless in writing signed by an authorized officer of the relevant party. This Agreement may not be assigned, sublicensed or transferred, in whole or in part, by Subscriber without the prior written consent of Brilliant.
- 24. Force Majeure.** In the event that either Party is unable to perform any of its obligations under this Agreement or to enjoy any of its benefits because of natural disaster, terrorism, fire, explosion, power blackout, earthquake, flood, the elements, strike, embargo, labor disputes, acts of civil or military authority, war, acts of god, acts or omissions of carriers or suppliers, acts of regulatory or governmental agencies, actions or decrees of governmental bodies or communication line failure not the fault of the affected Party or other causes beyond such Party's reasonable control (a "Force Majeure Event") the Party who has been so affected shall immediately give notice to the other Party. Upon receipt of such notice, all obligations under this Agreement shall be immediately suspended.
- 25. Signed Certification.** Upon Brilliant's request, no more frequently than annually, Subscriber shall furnish Brilliant with a signed certification (i) verifying that the Licensed Material is being used pursuant to the terms of this Agreement and (ii) listing the locations where the Licensed Material is being used.
- 26. Choice of Law and Venue.** This Agreement shall be governed and construed in accordance with the laws of the State of Florida. The venue for any proceeding shall be in Duval County, Florida.
- 27. Attorneys' Fees and Costs.** Attorneys' Fees and Costs. Should any action at law or in equity be necessary to enforce or interpret the terms of this Agreement, the prevailing party shall be entitled to reasonable attorney's fees, costs, and necessary disbursements in addition to any other relief to which said party may be entitled, including in any action in bankruptcy court, all appellate levels, and actions concerning entitlement and amount of fee awards.

By digitally accepting the terms of this agreement, you are consenting to the terms and conditions set forth in this SaaS agreement.